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GS/PRELIMS BOUNDARY	
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01. TARGET: UPSC Prelims + General Studies Mains only.	
v	
02. PRIMARY USE: GS-II conceptual foundations.	
v	
03. TOPIC SCOPE: Political Obligation, Resistance and Law.	
v	
04. Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller reconstruction, jurisprudence debate and answer-engine use	
v	
05. ADVANCED label = enrichment beyond a core GS answer, not an exam-paper label.	
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ASCII MASTER FLOW – PANEL 2/20: Origin and Dated Rail (1/4)

+-----+ ORIGIN AND DATED RAIL (1/4)			
+-----+ 01. 1552-1634 -> Edward Coke			
		v	
02. 1588-1653 -> Robert Filmer			
		v	
03. 1588-1679 -> Thomas Hobbes			
		v	
04. 1632-1704 -> John Locke			
		v	
05. 1711-76 -> David Hume			
		v	
06. 1712-78 -> Jean Jaques Rousseau			
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ASCII MASTER FLOW – PANEL 3/20: Origin and Dated Rail (2/4)

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	ORIGIN AND DATED RAIL (2/4)	
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	07. 1723-80 -> William Blackstone	
		v
	08. 1724-1804 -> Immanuel Kant	
		v
	09. 1729-97 -> Edmund Burke	
		v
	10. 1763-1847 -> James Kent	
		v
	11. 1779-1845 -> Joseph Story	
		v
	12. 1790-1859 -> John Austin	
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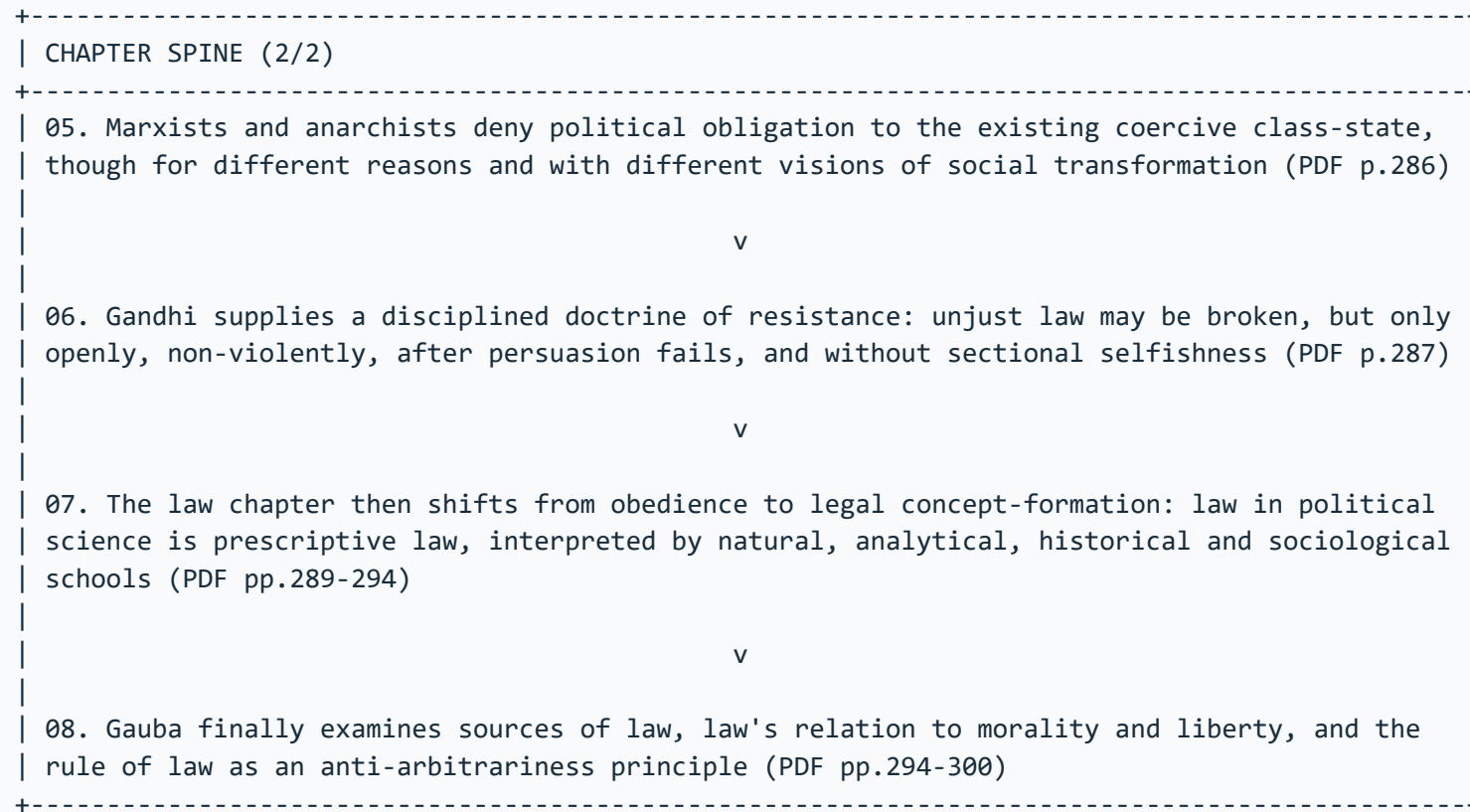
ASCII MASTER FLOW – PANEL 4/20: Origin and Dated Rail (3/4)

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	ORIGIN AND DATED RAIL (3/4)	
+-----+		
	13. 1817-62 -> Henry David Thoreau	
		v
	14. 1822-88 -> Henry Maine	
		v
	15. 1838-1909 -> Ludwig Gumplowicz	
		v
	16. 1842-1921 -> Peter Kropotkin	
		v
	17. 1857-1936 -> Hugo Krabbe	
		v
	18. 1859-1928 -> Leon Duguit	
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ASCII MASTER FLOW – PANEL 5/20: Origin and Dated Rail (4/4)

+-----+ ORIGIN AND DATED RAIL (4/4) +-----+	
19. 1861 -> Early History of Society and Its Relation to Moral Ideals	v
20. 1869-1948 -> Mahatma Gandhi	v
21. 1870-1964 -> Roscoe Pound	v
22. 1882 -> In his Lectures on the Principles of Political Obligation	

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CHAPTER SPINE (1/2)	
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01. Gauba begins with rival grounds of political obligation: force, divine right, conservative prudence, consent, idealism, Marxism, anarchism and Gandhian civil disobedience (PDF pp.280-287)	
v	
02. He rejects purely force-based and divine-right views because they do not secure morally reasoned obedience and leave no room for judging unjust commands (PDF pp.281-282)	
v	
03. Among consent theories, Hobbes and Rousseau tend toward strong obligation, whereas Locke gives the clearest limited version by making government a trust answerable to rights and consent (PDF pp.283-284)	
v	
04. Green's idealist revision places obligation toward the organized power of society and the common good rather than toward any government demanding blind obedience (PDF pp.284-286)	
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ILLUSTRATIONS ATTACHED TO CLAIMS	
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01. Gauba's own caution that failure to deliver full employment, universal education or	
medical care is not by itself sufficient ground for resistance is a useful example of how he	
limits the politics of disobedience (PDF p.288)	
02. Thoreau's refusal to pay taxes and imprisonment are used by Gauba as a classic	
illustration of principled disobedience (PDF p.287)	
03. Conscientious objection to military service during the First World War is cited as a	
case where legal duty and moral conscience can clash (PDF p.287)	
04. Gandhi's 1930 salt-law defiance is Gauba's clearest illustration of public, non-violent	
civil disobedience against colonial law (PDF p.287)	
05. Gauba's law chapter uses reform of child marriage, widow-burning, untouchability and	
bonded labour as historical examples of law leading social-moral reform (PDF p.296)	
06. Traffic regulation appears as Gauba's simple illustration of morally neutral but order-	
preserving law and of rule-of-law clarity (PDF pp.296, 300)	
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+-----+ COMPARISON MATRIX (1/3) +-----+			
01. UNLIMITED / NEAR-UNLIMITED	Core logic = Obey because force, divine command, absolutist	consent or exalted state leaves little room for resistance (PDF pp.280-284)	Main examples
= force theory, divine right, Hobbes, strong Hegelian reading, strong Rousseau reading (PDF	pp.280-285)	Scope = Dangerous because it can sanctify unjust commands	
02. LIMITED / CONDITIONAL	Core logic = Obey when law protects rights or common good;	resist when trust is broken or justice is violated (PDF pp.283-287)	Main examples = Locke,
Green, cautious constitutional resistance, Gandhi (PDF pp.283-287)	Scope = Best basis for	rule-bound but critical citizenship	
03. ANTI-OBLIGATION / NEGATIVE OBLIGATION	Core logic = Existing coercive state is not	morally owed obedience as such (PDF p.286)	Main examples = Marxist and anarchist positions
(PDF p.286)	Scope = Strong critique, but difficult to institutionalize without transition	problems	
04. MODE	Core logic = What it targets	Main examples = Method	Scope = Relation to law
05. RESISTANCE	Core logic = Specific unjust command, policy or authority abuse (PDF	pp.287-288)	Main examples = Can range from protest to direct action
Scope = May remain	within or move against law		
06. REVOLUTION	Core logic = The wider political or social order itself (PDF p.288)	Main	
examples = Long-term systemic overturning	Scope = Goes beyond ordinary legal correction		
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ASCII MASTER FLOW – PANEL 10/20: Comparison Matrix (2/3)

+-----+ COMPARISON MATRIX (2/3) +-----+		
07. CONSCIENTIOUS OBJECTION	Core logic = A particular legal duty that conscience rejects,	
such as military service (PDF p.287)	Main examples = Personal refusal	Scope = Accepts
punishment rather than compliance		
08. CIVIL DISOBEDIENCE	Core logic = Unjust law or policy, usually to awaken public	
conscience (PDF p.287)	Main examples = Public, non-violent, principled, penalty-accepting	
	Scope = Breaks specific law while respecting law in general	
09. SCHOOL	Core logic = What law is	Main examples = Key names
overstated		Scope = Risk if
10. NATURAL LAW	Core logic = Law draws authority from higher moral right or justice (PDF	
pp.290-291)	Main examples = Stoics, Roman jurists, Kant-style rational morality (PDF	
pp.290-291)	Scope = Can become too abstract if detached from institutions	
11. ANALYTICAL / POSITIVIST	Core logic = Law is valid through social or institutional	
sources rather than because its content is morally sound (PDF pp.291-292)	Main examples =	
Austin (command), Kelsen (Grundnorm/hierarchy), Hart (rules; primary/secondary and rule-of-		
recognition vocabulary is a standard jurisprudence add-on,) (PDF pp.291-292)	Scope =	
Dworkin's interpretivist principles critique challenges the claim that source-based rules		
exhaust law		
12. HISTORICAL	Core logic = Law evolves from custom, people and historical development	
(PDF pp.292-293)	Main examples = Savigny, Maine (PDF pp.292-293)	Scope = Can over-
romanticize inherited norms		
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ASCII MASTER FLOW – PANEL 11/20: Comparison Matrix (3/3)

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COMPARISON MATRIX (3/3)	
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13. SOCIOLOGICAL Core logic = Law serves social purpose and should be judged by social	
effects (PDF pp.293-294) Main examples = Duguit, Pound, Laski (PDF pp.293-294) Scope =	
Can underplay formal validity if used carelessly	
14. THEORY Core logic = Justifying question Main examples = Strongest claim Scope =	
Main objection	
15. RETRIBUTIVE Core logic = What does this culpable wrong deserve? Main examples =	
Proportion restores moral/legal balance and avoids private revenge Scope = Pain may	
neither repair harm nor reform the offender; revenge must not masquerade as justice	
16. DETERRENT Core logic = What sentence will prevent future crime? Main examples =	
Punishment may discourage the offender and the public (PDF p.165) Scope = It risks using	
the offender merely as an example and may ignore impulsive crime or social causes	
17. REFORMATIVE Core logic = How can the offender return to lawful life? Main examples =	
Rehabilitation treats crime's personal and social causes (PDF pp.165-166) Scope = Not	
every offence is explained by pathology or deprivation; grave culpability and public	
protection remain relevant	
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| EXAMINER TRAP FIREWALL (1/3) |
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| 01. TRAP: "Civil disobedience means any illegal act done for a cause." => REPAIR: Gauba's |
| version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287) |
| 02. TRAP: "A valid law is automatically a just law." => REPAIR: Legal validity and moral |
| legitimacy can diverge; the whole discussion of natural law, equity and conscience depends |
| on this (PDF pp.290-296) |
| 03. TRAP: "Rule of law means identical rights and duties in all situations." => REPAIR: |
| Gauba's traffic example shows generality and clarity do not exclude differentiated |
| regulation by relevant situation (PDF p.300) |
| 04. TRAP: "Hobbes, Locke and Rousseau all justify the same kind of consent." => REPAIR: |
| Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and |
| civic freedom (PDF pp.283-284) |
| 05. TRAP: "Law always reduces liberty." => REPAIR: Under a democratic welfare state, law |
| often secures equal liberty and social welfare by rational restraint (PDF pp.296-298) |
| 06. TRAP: "This topic is basically Indian Polity." => REPAIR: This file gives conceptual |
| tests; Indian statutes, Articles and case-law belong elsewhere |
| 07. TRAP: "Retribution means unlimited revenge." => REPAIR: A defensible retributive theory |
| is proportional and public, not private vengeance |
| 08. TRAP: "A severe sentence is automatically an effective deterrent." => REPAIR: Deterrence |
| is an empirical proposition; severity alone is neither necessary nor sufficient proof of |
| prevention |
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| EXAMINER TRAP FIREWALL (2/3) |
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| 09. TRAP: "Reformative theory denies responsibility." => REPAIR: It changes the purpose and |
| method of punishment; it does not by itself erase guilt, accountability or protection of |
| society |
| 10. TRAP: "Capital punishment follows automatically from a heinous crime." => REPAIR: The |
| source presents rival arguments; irreversibility, error, human dignity, proportionality and |
| deterrence must be separately examined |
| 11. TRAP: "Austin's command theory and Hart's rule theory are the same thing with different |
| names." => REPAIR: Hart explicitly rejects Austin's coercive-command model as too narrow |
| (built on the criminal-law model) and replaces it with a structure of rules covering duties, |
| powers and procedure (PDF pp.291-292) |
| 12. TRAP: "Kelsen's Grundnorm is a moral standard smuggled into positivism." => REPAIR: |
| Kelsen keeps the basic norm purely as a validity-conferring apex of the legal hierarchy, |
| deliberately separate from questions of morality or moral obligation - this is exactly why |
| he remains a positivist despite using a normative concept (PDF p.291) |
| 13. TRAP: "Kelsen's General Theory of Law and State is a 1961 work." => REPAIR: 1945 is the |
| year of its first English publication (Harvard University Press, tr. Anders Wedberg); 1961 |
| belongs to Hart's The Concept of Law. The two dates sit adjacent in the Austin -> Kelsen -> |
| Hart -> Dworkin sequence and are easily swapped - if unsure in the exam hall, name the works |
| and the sequence without dates rather than guessing a year (?12, bibliographic-dates note) |
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| EXAMINER TRAP FIREWALL (3/3) |
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| 14. TRAP: "Dworkin says judges can decide hard cases however they like." => REPAIR: Dworkin |
| insists principles are part of law and constrain judicial reasoning even though they are |
| less precise than rules and cannot be hierarchically ranked; discretion is bounded, not |
| unlimited (PDF p.292) |
| 15. TRAP: "Political obligation, resistance, civil disobedience and revolution are |
| interchangeable terms for defying the state." => REPAIR: Keep them analytically separate: |
| obligation asks whether/why one should obey at all; resistance targets a specific unjust |
| act; civil disobedience is a disciplined, public, penalty-accepting mode of resistance; |
| revolution targets the wider order itself and carries the highest risk (PDF pp.287-288, |
| Table B) |
| 16. TRAP: 2025: Can the right to life be absolute with reference to capital punishment? |
| 17. TRAP: 2024: Accept or reject capital punishment as an effective deterrent |
| 18. TRAP: 2023: Proportionality and juvenile punishment |
| 19. TRAP: 2022: Moral justifications of capital punishment |
| 20. TRAP: Answer frame: define penal aim => REPAIR: distinguish |
| retribution/deterrence/reform -> apply proportionality -> test irreversibility and error -> |
| separate moral argument from empirical deterrence -> conclude conditionally |
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| OWNERSHIP BOUNDARIES AND CROSS-LINKS |
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| 01. Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller |
| reconstruction, jurisprudence debate and answer-engine use |
| 02. Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because the kind of |
| state one imagines affects the scope of obedience one permits |
| 03. Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the earlier problem of |
| where authority is located |
| 04. Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for |
| ideological roots of anarchist and Gandhian positions |
| 05. Use Philosophy/paper-2/socio-political/Individual-and-State.md and |
| Philosophy/paper-2/socio-political/Forms-of-Government.md for Philosophy-optional parallels |
| on state, authority and obligation |
| 06. Use Polity/advanced/10_Amendment-and-Basic-Structure.md only for Indian constitutional |
| application; this file does not reproduce statute/case detail |
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+-----+ REVISION CAPSULE +-----+	
01. Open with the question itself: political obligation asks why, when and how far one must obey political authority v 	
02. Divide answers into three camps: unlimited, limited and anti-obligation v 	
03. Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission v 	
04. Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness v 	
05. In law answers, define prescriptive law, list the four schools, then distinguish legality from morality and liberty v 	
06. End with rule of law: known law, general law, non-retrospective law and restrained government +-----+	

ASCII MASTER FLOW – PANEL 17/20: Answer-Grabbing Line Bank

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ANSWER-GRABBING LINE BANK	
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01. force / divine right / strong idealist or absolutist consent	
02. Political obligation: the duty to obey political authority and the laws necessary to	
maintain political institutions (PDF p.280)	
03. Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some	
qualify obedience by rights or common good, and some deny obligation to the coercive state	
itself	
04. Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist	
critic (PDF pp.291-292):	
05. "Civil disobedience means any illegal act done for a cause." -> Gauba's version is	
public, non-violent, principled, last-resort and penalty-accepting (PDF p.287)	
06. Directive - What it demands - Trap to avoid	
07. Claim (Austin): law is the sovereign's command backed by sanction; validity requires	
nothing more	
08. 1. Thoreau's tax refusal and imprisonment - principled civil disobedience	
09. Claim: legal validity and moral legitimacy are conceptually separate	
10. Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil	
disobedience	
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ASCII MASTER FLOW – PANEL 18/20: Must-Write Keyword Bank

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MUST-WRITE KEYWORD BANK	
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01. Subject;; Tier;; Exam relevance;; Core area;; Grounded in;; Source edition/cutoff;;	
obedience	
02. Political obligation;; Force-based obligation;; Consent;; Common good basis;; Civil	
disobedience;; Conscientious objection;; Prescriptive law:	
03. Unlimited vs limited vs anti-obligation;; Political authority vs government officials;;	
Legal validity vs moral legitimacy;; Civil disobedience vs ordinary law-breaking;;	
Resistance vs revolution;; Descriptive/scientific law vs prescriptive law;; Law and liberty:	
04. Kelsen (Grundnorm/hierarchy);; 1945; basic norm (Grundnorm); hierarchy of norms; Date	
correction (was previously given here as 1961);; Hart's; Hart (critique of Austin; structure	
of rules):	
05. "Civil disobedience means any illegal act done for a cause."; "A valid law is	
automatically a just law."; "Rule of law means identical rights and duties in all	
situations."; "Hobbes, Locke and Rousseau all justify the same kind of consent."; "Law	
always reduces liberty."; "This topic is basically Indian Polity."; "Retribution means	
unlimited revenge."	
06. Political-obligation question;; Jurisprudence question;; "Distinguish resistance from	
revolution"; "Critically examine Austin's theory of sovereignty/law"; "Discuss Hart's	
concept of law"; "Is civil disobedience justified?"; Theses	
07. Claim (Austin);; Objection (Hart);; Objection (Dworkin) to Hart;; Reply/limit;; Austin;	
Hart; Dworkin	
08. Named Evidence; Obligation; Resistance; SESSION; Five; Thoreau; Gandhi	
09. Claim;; Evidence;; Significance;; Limit;; 10-marker;; 15-marker;; Claim-Evidence-Limit	
10. Cautious Indian; Application; Final Integration; SESSION; Gandhi; Indian; Article-	
specific	
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ASCII MASTER FLOW – PANEL 19/20: GS Mains Question Routes

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GS MAINS QUESTION ROUTES	
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01. 10 MARKS: Why is force insufficient to establish political obligation? Answer in 150 words	
02. 10 MARKS: Distinguish resistance, revolution, conscientious objection and civil disobedience. Answer in 150 words	
03. 10 MARKS: Compare Hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation. Answer in 150 words	
04. 15 MARKS: Critically examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin. Answer in 250 words	
05. 15 MARKS: When is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law. Answer in 250 words	
06. 15 MARKS: Can legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law. Answer in 250 words	
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ASCII MASTER FLOW – PANEL 20/20: Qualified Verdict and Answer Spine

